Revision Date:
November 1, 2019

Background:
California residence is a requirement to receive CalWORKs. Written statement from the customer is acceptable proof of his/her intent to reside in California unless there is inconsistent or conflicting information known to the County. No durational period of residence is required.

Purpose:
This section has been updated due to sunset review. Residence policies and instructions have been consolidated, and CPG 42-400.B Residence Intention/Change of Residence and CPG Letter No. 208 Whereabouts Unknown and EBT Usage are now obsolete.

Policy:
Establishment of Residence
A customer establishes California residency by:
- Voluntarily living in the state with the intention of making his/her home for other than a temporary purpose, or
- Living in the state at the time of the application for aid, not receiving aid from another state, and having entered the state with a job commitment or to seek employment.

Once established, California residence continues until the customer leaves the state and establishes residence elsewhere. Temporary absence from the state does not interrupt continuity of residence unless the customer has taken action to establish residence outside of California.

Home County
A customer is considered to make his/her home in the county where he/she physically resides. The home county is responsible for the payment of aid.
Exceptions:
- Home Maintained in Another County
  If customer is maintaining a home in another county, the home county is the county in which the customer maintains the home if he/she intends to return. If the customer fails to return within four months, the county in which he/she physically resides will be considered the home county. The four-month period begins the date the County determines the customer is maintaining a home in a county other than where he/she physically resides.
- Farm Labor Family
  The four-month period does not apply to farm labor families who work in one county but maintain a home in a different county with the intent to return when not working. The county in which the home is maintained is responsible for payment of aid.
- Foster Care Dependent Children
  The county of jurisdiction is responsible for payment of aid for a dependent child who is under the jurisdiction of juvenile court, Child Welfare Services, or the probation department, regardless of the county or state where the child physically resides. Refer to CPG 40-183.A.
- Inpatient in Health Care Institution

If the Assistance Unit (AU) moves from their existing home because a member of the AU must be admitted for inpatient care in another county, the home county will continue to be responsible for payment of aid for as long as the AU continues to maintain an existing home in that county.

- Inpatient Released from State Hospital
  If a member of the AU is admitted to a state hospital, the home county is the county where the AU resided prior to the customer entering the hospital, not to exceed three years following his/her release from inpatient status.
- Medical Care in Another County
  If a member of the AU must go to another county solely because necessary medical care is not available, the home county is the county in which the AU continues to maintain their existing home.
- Kin-GAP
  The home county is the county which had legal custody of the child prior to the dismissal of dependency and establishment of legal guardianship by the court.

Reporting Responsibilities

The customer is responsible for informing the County if he/she leaves the county, state, or country. A customer who is absent from the state is required to provide a written statement regarding his/her family's housing arrangements, income, and needs, and residence intent. A customer who is living in California but absent from the county paying aid is required to give information in order for the County to determine if an intercounty transfer is needed.

Address change is a mandatory report for CalWORKs. Customers are required to inform the County of an address change within applicable timeframes: 5 days for Applicants and 10 days for Recipients. Address changes are subject to the National Voter Registration Act (NVRA). Refer to EPPG 03-01 for NVRA requirements.

Absence from the State

Customers who leave the state for 30 days or more are required to provide a monthly written statement regarding their California Residence in order for the County to evaluate ongoing eligibility. The written statement will include:

- Anticipated date of return to California or intent not to return
- Reason(s) for absence from California
- Current location and status of the family's housing arrangements, income, and needs
- Notice to the customer that failure to respond to the inquiry will result in ineligibility and termination of aid payments.

Failure to respond to the request within 30 days or if the response indicates there is no longer intent to return to California will result in discontinuance of CalWORKs with timely and adequate notice.

Customers who intend to maintain California residency but remain out of the state for 60 days or longer are considered to have established residence outside of California and will be discontinued from CalWORKs, unless there is sufficient evidence to support intent to return, such as:

- Family members with whom the customer lived, currently live in California
- Customer has continued maintenance of his/her California housing arrangements (owned, leased, or rented)

- Customer has employment or business interests in California
- Customer's return to California was prevented by illness or an emergency
- Any other actions taken by the customer to establish his/her intent to reside in California

Procedure:
Contact the customer and request verification of California residence, if required. CalWORKs may not be discontinued for loss of contact, returned mail, or out of state benefit usage without first attempting to contact the customer for clarification and/or to request verification of California residence.

Request a monthly written statement to verify California residency if customer has been continuously absent from the state for 30 days or longer. Form 806-0 California Residence Questionnaire may be used.

- Discontinue CalWORKs at the end of the month with timely and adequate notice if:
  - Customer does not respond to the request within 30 days,
  - Customer's response indicates he/she no longer intends to return to California, or
  - Customer has been absent from the state for 60 days or longer and does not have sufficient evidence to support his/her intent to return.
- Do not discontinue CalWORKs if customer has not established residence outside of California and his/her intent to return was prevented by illness or an emergency.

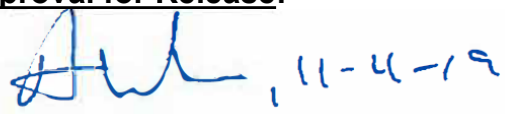
Application for Aid in Other County/State
Coordinate with the other county or state to prevent a break in aid or duplication of aid payments if a customer who is receiving aid moves to/from another county or state. CalWORKs must be discontinued by the end of the following month if a customer applies for aid in another state.

Customers who leave San Diego County but remain in California will be evaluated for intercounty transfer as appropriate. Refer to CPG 40-100.P.

Program Impacts:
CalFresh: CFPG 63-152
Medi-Cal: MPG 07.05
General Relief: GRPG 90-200.1

References:
MPP 40-181.5, 40-189, 42-400 - 42-424

Sunset Date:
This policy will be reviewed for continuance by November 30, 2022.

Approval for Release:

11-4-19

Rick Wanne, Director
Eligibility Operations